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Case Number: 25PSCV03582 Hearing Date: July 28, 2026 Dept: G

Plaintiff

Adrian Torres' Motion to Quash Subpoena and for Protective Order

Respondent:

Defendant Avendano P&D

TENTATIVE

RULING

Plaintiff

Adrian Torres' Motion to Quash Subpoena is DENIED.

Plaintiff

Adrian Torres' Motion for Protective Order is GRANTED.

BACKGROUND

This

is an employment action for wrongful termination. On August 4, 2025, defendant Avendano P&D (Avendano) allegedly hired plaintiff Adrian Torres (Torres) as a driver. On August 18, 2025, Torres allegedly fell ill and left work before his shift ended. On

August 19, 2025, Torres allegedly sought treatment at the hospital, which allegedly diagnosed him with a spinal disc condition limiting his ability to life and bend. That day, Torres

allegedly informed Avendano about his diagnosis, and Avendano allegedly told him to take the rest of the week off to recover. On August 24, 2025, Avendano allegedly terminated Torres.

On

October 3, 2025, Torres filed the Complaint, alleging causes of action for (1) disability discrimination; (2) failure to provide reasonable accommodation; (3) failure to engage in the interactive process; (4) retaliation for requesting accommodation; (5) failure to prevent discrimination, harassment, and retaliation; (6) retaliation for using sick leave; (7) wrongful termination; and (8) failure to provide employment records.

On

June 23, 2026, Torres filed this motion to quash subpoena and for protective order. On July 15, 2026, Avendano filed the opposition, and on July 21, 2026, Torres filed the reply.

This

case is set for a case management conference/status conference re: ADR and a hearing on the motion on July 28, 2026.

ANALYSIS

Torres

seeks to quash the subpoena that Avendano served on his medical provider and requests a protective order. For the following reasons, the motion is GRANTED IN PART and DENIED IN PART.

Legal

Standard

Any

party whose records are subject to subpoena may challenge the validity of the subpoena by way of a motion to quash.

(See Code Civ. Proc., §§ 1985.6; 2025.410, subd. (c).) Under Code of Civil Procedure section 1987.1, a court “may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon such terms or conditions as the court shall declare.” (Code Civ. Proc., § 1987.1, subd. (a).) The court may also make any other order as may be appropriate to protect the person from unreasonable or oppressive demands such as unreasonable violations of the right of privacy. (Ibid.)

Discussion

Torres

argues that the subpoena served on his medical provider violates his right to privacy. The court disagrees.

An

individual's right of privacy is protected by the California Constitution. (Cal. Const., Art. I, § 1.) In ruling on discovery motions, the court

must balance the privacy claims of the responding party with the requesting party's need for the information. (Schnabel

v. Super. Ct. (1993) 5 Cal.4th 704, 718–722.) The responding party, as the party asserting the right of privacy, bears the initial burden of demonstrating (1) a legally protected privacy interest, (2) an objectively reasonable expectation of privacy in the given circumstances, and (3) a threatened intrusion that is serious. (Williams v. Super. Ct.

(2017) 3 Cal.5th 531, 552.) If this

standard is met, requesting party must then show that the requested documents are “directly relevant” to the litigation.

(Tylo v. Super. Ct. (1997) 55 Cal.App.4th 1379, 1387.)

Responding

Party's Burden

Torres'

privacy interest satisfies all three requirements under Williams. For the first Williams requirement, medical records are protected by the constitutional right of privacy. (See Britt v. Super. Ct. (1978) 20 Cal.3d 844, 862, commenting that patients have a right of privacy over confidential communications with their physicians and over their medical histories.) For the second element, the

court finds that Torres has an objectively reasonable expectation of privacy in his own medical records apart from his spinal disc diagnosis. (See Bd. of Medical Quality Assurance v. Gherarhini (1979) 93 Cal.App.3d 669, 678, highlighting that “[a] person's medical profile is an area of privacy infinitely more intimate, more personal in quality and nature than many areas already judicially recognized and protected,” disapproved of on other grounds by Williams, supra, 3 Cal.5th at 557, fn. 8.) For the third Williams

requirement, Torres cites the subpoena's demand for “[a]ny and all medical records . . . relating to any care, treatment, diagnosis, prognosis, consultation and/or findings” without limiting the request to the medical condition at issue. (Mot., p. 2, referencing

Silva-Guzman Decl., Exh. 2, Attach. 3.)

Reviewing the language of the subpoena, the court finds that they are overbroad, threatening a serious intrusion into Torres's private records. Thus, the court finds that Torres met his burden under Williams.

Since

Torres demonstrates that the subpoena implicates his right to privacy, the burden now shifts to Avendano to demonstrate that the requested records are directly relevant to the litigation. (See Tylo, supra, 55 Cal.App.4th at 1387.)

Requesting

Party's Burden

The

court finds the requested documents are directly relevant to this litigation. Torres placed his physical health at issue with allegations that he left work during a shift to seek medical treatment, received medical treatment and a diagnosis the next day, and required a medical accommodation at work.

(See Compl., ¶¶ 11–14.) Furthermore,

the Complaint prays for “compensatory damages for emotional distress, humiliation, and mental anguish.”

(Compl., Prayer, ¶ 1.) Torres'

medical records are probative and relevant to the litigation and the claims asserted by Torres. Thus, the court finds that Avendano met its burden to obtain the requested documents.

Therefore,

the motion to quash subpoena is DENIED.

Protective

Order

Even

though the court denies the motion to quash subpoena, it considers the request for a protective order.

“The

court shall limit the scope of discovery if it determines that the burden,

expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.020, subd. (a).) “The court may make this determination pursuant to a motion for protective order by a party or other affected person.” (Ibid.) The burden of proof is on the party seeking the protective order to show “good cause” for the order they seek. (Fairmont Ins. Co. v. Super. Ct. (2000) 22 Cal.4th 245, 255.)

As discussed above, even though the information sought is relevant, the court finds the subpoena is overbroad because it seeks medical records that are not related to Torres’ spinal disc condition, his emotional distress, humiliation, or mental anguish. (See Silva-Guzman Decl., Exh. 2, Attach. 3.)

Therefore, the motion for a protective order is GRANTED. The subject subpoena is limited to records pertaining to Torres’ emotional distress, humiliation, mental anguish, and the relevant body parts for which Torres claims injury, namely the back and spine. The court does not find that the request for records dating back to January 1, 2023 is overbroad, so the court declines to issue a protective order further limiting the timeframe for the subpoena.

CONCLUSION

For these reasons, the motion to quash subpoena is DENIED, and the motion for protective order is GRANTED. A PROTECTIVE ORDER is ISSUED limiting the subpoena to any medical records dating back to January 1, 2023 dealing with plaintiff Adrian Torres’ (1) emotional distress, humiliation, or mental anguish and (2) back and spine complaints and/or treatment.